

Tentative Rulings for Department 501

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Tentative Ruling

Re: ***Del Rey Packing v. Del Rey Community Services District***
Superior Court Case No. 25CECG05189

Hearing Date: May 13, 2026 (Dept. 501)

Motion: Defendant's Demurrer to the Complaint

Tentative Ruling:

To find the demurrer moot and take the matter off calendar. (Code Civ. Proc., § 472, subd. (a).)

Explanation:

“It is well established that an amendatory pleading supersedes the original one, which ceases to perform any function as a pleading.” (*Foreman & Clark Corp. v. Fallon* (1971) 3 Cal.3d 875, 884, citations omitted.) Accordingly, the filing of a first amended complaint renders a demurrer to the original complaint moot. (*Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th 1049, 1054.)

Plaintiff filed the First Amended Complaint on April 30, 2026, at the time when the opposition to defendant's demurrer was due. The First Amended Complaint is thus timely (Code Civ. Proc., §§ 472, subd. (a) and 1005, subd. (b)), and renders the demurrer moot. Accordingly, the hearing is taken off calendar.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: DTT on 5/11/2026.
(Judge's initials) (Date)